



POLICE DEPARTMENT

August 21, 2015

MEMORANDUM FOR: Police Commissioner

Re: Detective Jeffrey Carroll
Tax Registry No. 923888
Narcotics Borough Manhattan North
Disciplinary Case No. 2014-11925

The above-named member of the Department appeared before me on April 28, 2015, charged with the following:

1. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] abused his authority as a member of the New York City Police Department in that he stopped Person A without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 1 - STOP AND FRISK

2. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] abused his authority as a member of the New York City Police Department in that he frisked Person A without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 2 - STOP AND FRISK

3. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] abused his authority as a member of the New York City Police Department in that he stopped Manuel Mane without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 1 - STOP AND FRISK

4. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] abused his authority as a member of

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the New York City Police Department in that he frisked Manuel Mane without sufficient legal authority.

P.G. 212-11, Page 1, Paragraph 2 - STOP AND FRISK

5. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] wrongfully used force in that he pushed Manuel Mane without police necessity.

P.G. 203-11 - USE OF FORCE

6. Said Detective Jeffrey Carroll, on or about April 30, 2013, at approximately 1600 hours, while assigned to the Narcotics Borough Manhattan North and on duty, in the vicinity of [REDACTED] wrongfully used force in that he punched Manuel Mane without police necessity.

P.G. 203-11 - USE OF FORCE

The Civilian Complaint Review Board (CCRB) was represented by Andre Applewhite, Esq., Respondent was represented by James Moschella, Esq. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB called Manuel Mane, Manuel Mane Jr. and Jose Carrion as witnesses. Respondent called Sergeant Freddy Dominguez as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found not guilty of the misconduct charged in Specification 1 and guilty of the misconduct charged in Specifications 2, 3, 4, 5 and 6.

FINDINGS AND ANALYSIS

The following relevant facts are not in dispute. Respondent is a veteran detective assigned to the Major Case Unit, Narcotics Bureau Manhattan North. This unit carries out long term investigations targeting high level drug traffickers. On April 30, 2013, Respondent's team was conducting a tactical meeting in Manhattan for the purpose of

executing a search warrant at [REDACTED] in the Bronx. Based on intelligence gathered over a two-month period, Respondent had information that a drug trafficker was storing approximately 18 kilos of cocaine at that location. During the meeting, the two detectives stationed at [REDACTED] notified the team that the target named in the warrant had arrived along with others who had driven to the location in luxury vehicles. They believed a drug transaction was about to take place and told the tactical team to move in. Respondent and a second detective immediately left Manhattan and rushed to the Bronx. Just before they arrived, the detectives on the scene informed Respondent that the target was exiting [REDACTED]. Respondent advised them to "freeze" the target. The detectives successfully detained the target but those in the other vehicles fled. (Tr. 84-90)

When Respondent arrived at [REDACTED] the target was handcuffed outside the building. Respondent obtained keys from the target, turned off his police radio and conducted a cursory search of [REDACTED] with Detective Feliciano. Respondent testified that the situation was "dangerous" and "extremely tense" because backup had not arrived, but that they proceeded with the search because others might still be in the apartment and evidence could be destroyed. Respondent and Detective Feliciano went through the entire apartment "as best [they] could" and determined that there was no one in "plain sight." They did not, however, open the closets or look under the beds. Detective Feliciano exited the building and left Respondent alone to guard [REDACTED]. He positioned himself at the front door "with one foot inside the apartment and the other foot in the hallway and the door was kind of closed on me."

Respondent testified that "there were multiple scenarios going through my head of what danger lurked still back inside this apartment." (Tr. 90-95, 124, 127, 129, 133)

At or about 1600 hours, resident Manuel Mane and building superintendent Person A entered the building. They walked through the long entrance corridor which leads to both the staircase and to Apartments [REDACTED] [REDACTED] [REDACTED]. They eventually separated. Mane proceeded to the staircase and Person A walked past the staircase to knock on the door of Apartment [REDACTED]. When resident Jose Carrion opened the door to [REDACTED], Respondent asked whether he had called the super. Carrion stated that he had not.

At this point, the circumstances leading up to the stop, frisk and use of force are in dispute. It is undisputed, however, that Respondent stopped and frisked Person A and Mane. During the encounter, Respondent also pushed Mane against the wall, Mane's face hit the wall, his glasses were broken and Respondent "punched" or "jabbed" Mane with his fist. Person A and Mane were then taken to the precinct and the arrests were voided. (Tr. 48-50, 97, 98, 99 CCRB Exs. 2B-2E)

The following is a summary of Mane's trial testimony. Mane is a 75 year-old man who resided on the fourth floor of [REDACTED] with his teenage son. At about 1530 hours on April 30, 2013, Mane returned home from his job carrying two bags of work tools and materials. As he approached his building, he noticed "quite a few" police with a handcuffed male on the sidewalk. Mane greeted the police and entered the building with superintendent Person A and asked Person A what was happening. They walked down the entrance corridor together and parted when Mane started up the stairs to his fourth floor apartment and Person A continued to Apartment [REDACTED] to check on a repair. He saw Respondent at the door of Apartment [REDACTED] before going up the stairs and recognized him to

be a police officer. According to Mane, as he climbed the stairs he saw Respondent push Person A. Respondent and Person A spoke to each other, but Mane did not know what was said.

Respondent then ordered him to return to the first floor. Mane explained that even though his English comprehension is limited, he understood Respondent when he said "come on" and gestured with his hands for him to approach. Mane complied. (Tr. 20-25, 31, 41, 46-52, 52, 55) According to the witness, as he stood in front of Respondent he "yelled at me" and angrily "told me things in English that I did not understand." Mane was "nervous" and "frightened" but raised his arms when Person A told him to do so. At trial Mane testified that Respondent then frisked him, punched him twice on or about his back, "grabbed" him and pushed him against the wall causing his glasses to break and cut the bridge of his nose. Respondent then handcuffed him and "threw" him on the floor. (Tr. 25-35, 39, 55-60)

Mane attested that while on the floor, a police officer who spoke Spanish arrived and asked for identification. His son also walked into the building. The police checked for outstanding warrants, but none were found. According to Mane, when they searched his pockets they found a police badge that belonged to his daughter. Respondent reacted by stating, "I don't care if he has a daughter who is a police officer, take him to the precinct." He was eventually taken to the precinct where his arrest was voided. A summons that was issued was later dismissed. (Tr. 33, 34, 60, 64, 116-117)

Manuel Mane Jr. testified at the trial. According to Mane Jr., he came home from school to see his handcuffed father thrown on the hallway floor with blood on his face. The police told him to go away. However, when his father told him he needed water and could not breathe, Mane Jr. brought him water. Mane Jr. told an officer that his sister was

also a member of service. The police officer replied that he "did not care and that he did not give a fuck." Respondent went into Apartment [REDACTED] and Mane Jr. stayed in the hallway with his father and a Hispanic officer who called his sister on the phone. (Tr. 67-72)

Jose Carrion, who lived [REDACTED] in Apartment [REDACTED] on April 30, 2013, testified at trial. According to Carrion, at approximately 1600 hours he heard the doorbell ring. It was Person A and a police officer. The officer asked if he knew Person A and Carrion confirmed that he did. When he asked if he had called Person A, he responded no. The police officer then told him to close the door. It was not until later that evening that his sister informed him that she had called Person A to do work in the apartment. (Tr. 75-81)

Person A did not appear at the hearing. Instead, the transcript and recording of his June 20, 2013 interview were admitted into evidence. The following is a summary of that interview statement. According to Person A, the woman who lived in Apartment [REDACTED] asked him to repair the shower. As he entered the building to check on Apartment [REDACTED], he saw that the police had arrested a male from Apartment [REDACTED]. Person A met Mane on the street and talked to him as they entered the building and walked through the entrance corridor. Mane went up the stairs. Person A proceeded to [REDACTED] and knocked on the door. As he did so, the police officer asked who he was. Person A identified himself as the building superintendent. Carrion opened the door to Apartment [REDACTED]. When asked if he had called the superintendent, Carrion told the officer that he had not. As Carrion closed the door, Respondent grabbed Person A pushed him against the wall and told him to raise his hands. Person A complied and Respondent "searched" him. Person A tried to tell Respondent that Carrion's sister had called him, but he would not listen. Respondent saw Mane on the

staircase and called him down. Respondent told Mane to put up his hands, but Mane was confused because he did not speak English. According to Person A, "instead of telling him in Spanish he punches him twice." He then hits him in two places and "grabs him by the head and smashes him against the wall." As a result, Mane's glasses fell off and cut him. Respondent handcuffed them both and then placed them on the floor. A "Spanish cop" arrived and asked for identification. Mane's son entered the building some time during the incident. According to Person A, "it all happened very quickly." (CCRB Ex. 1A, pp. 3-28)

The following is a summary of Respondent's trial testimony. Respondent told this tribunal that when he heard the front door open he had hoped that it was a member of his field team. From the door of Apartment [REDACTED] he "kept an eye on" the corridor and saw Mane and Person A approach. According to Respondent, the men were speaking "in a low hushed tone, almost conspiratorial" and were "looking behind them into the street and moving directly in my direction." They appeared to be "noticeably surprised" and "froze" when they first saw Respondent from a distance of about "10 to 15 feet." Respondent asserts that Mane "changed direction" when he saw Respondent by turning left and proceeding up the stairs. He told this tribunal that, "If he was walking on to the stairs he would have already been stepping on to the first stair.... They were not walking toward the stairwell. They were walking toward me." Person A continued to walk toward Respondent. Respondent was "confused about what they were doing." Person A responded to his greeting and when asked stated that he was the super and that he lived in the building. Person A knocked on the door of Apartment [REDACTED] which was directly next to where

Respondent was standing. He stated that "nervousness [was] really starting to escalate" and he believed that Mane was "watching from the stairs." (Tr. 136-140, 96-100)

As Carrion opened the door of Apartment [REDACTED], Respondent asked whether he had called the super. Carrion replied that he had not called Person A. Respondent asked Carrion to go back inside and told Person A to "do me a favor, you are going to have to hang out now." He then told Mane "to come down off those stairs" and "stay with me." He ordered "both individuals to just put their hands on the wall and don't move" while he waited for the field team to arrive. Person A complied. Mane was "furious" and was "yelling, screaming, basically incredulous that he is being asked to come down where Person A is." Respondent "perceived" that Mane asked Person A in Spanish what was going on. Respondent asked Person A to explain that they were not under arrest, but they were not free to go and had to comply with orders. According to Respondent, Mane was waving his arms. He asked Mane, "Do me a favor, just put your hands on the wall" and added in Spanish, "manos arriba." Person A tried to help. Mane would not comply. Respondent testified that he "had to actually take his hands and put them on the wall. I grabbed him by the wrists and I actually had to turn him around and put his hands on the wall." (Tr. 99-105)

Respondent frisked Mane and Person A. According to Respondent, Mane kept removing his hands from the wall. After "4 or 5" attempts to maintain Mane's hands in position, Mane turned toward Respondent. Respondent testified that he pushed Mane toward the wall and that he "must have been off balance a little bit" since "his face hit the wall and his glasses [fell] from his face." Mane reacted by screaming and coming toward him with his hands up. Respondent stated that in order to control the situation, he "took a

defensive jab at his stomach." Respondent explained: "I was treating him with kid gloves....I realized he was an older man." He handcuffed both Mane and Person A and asked them to sit on the ground. Respondent stated that Mane had no injuries and was not in pain. He turned on his radio to communicate with the rest of the field team. When they arrived, Mane and Person A were sitting on the floor. Respondent reentered Apartment [REDACTED]. He stated that Mane Jr. did not speak to him. (Tr. 105-115)

Sergeant Freddy Dominguez also testified at the hearing. He supervised the execution of the warrant obtained by Respondent and described the day as "chaotic." When they received phone calls from the building concerning the target, part of the tactical team rushed to the location while others completed the tactical plan and loaded equipment. Consequently, Dominguez arrived at the scene about half an hour after Respondent. Upon entry, he saw Respondent and two individuals cuffed in front of Apartment [REDACTED]. Respondent informed him that he was at the apartment when Mane and Person A approached. Respondent told him that when they realized he was a police officer they were startled and started to walk away. Respondent further explained that when they were questioned about their intent they did not have a precise answer. He also reported that Mane was acting "irrational" and was not listening to instructions. Dominguez questioned them and noticed that Person A was compliant and Mane was "fidgety." Dominguez grabbed Mane by the arms and told him in Spanish to stay still. They were detained in front of the apartment pending the investigation because they did not know whether they were involved with the drug trafficker. After they found no evidence establishing a connection, the arrests were voided. He did not notice whether Mane was injured. (Tr. 162-175)

The first issue is whether Respondent was justified in elevating the level of this encounter to a stop. Police action beyond a request for information requires an elevated level of suspicion regarding criminal activity. Patrol Guide Procedure 212-11 addresses the criteria for conducting a Level 3 stop: When a uniformed member of service reasonably suspects a person has "committed, is committing or is about to commit a felony or a Penal Law misdemeanor," that officer may "stop [the] person and request identification and explanation of conduct." *See also People v. DeBour*, 40 NY2d 210 (1976) Reasonable suspicion has been defined as "the quantum of knowledge sufficient to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand." *People v. Cantor*, 36 N.Y.2d 106, 112-113, 365 N.Y.S.2d 509, 516 (1975). Some of the factors officers may rely on to formulate a reasonable suspicion are the suspect's demeanor, character, and gait, any overheard conversation, the particular areas involved, any information received from third parties, time of day or night and proximity to crime scenes. Patrol Guide Procedure 212 11 Additional Data A tribunal must be particularly careful to assess the factual circumstances known by the police officer at the time. *People v. Medina*, 107 A.D.2d 302 (2nd Dept. 1985)

Given the totality of circumstances presented, Respondent acted reasonably when he initially stopped Person A. It is important to note that this stop took place within the context of a warrant execution which was tense, disorderly and chaotic. Because of the circumstances discussed above, only four members of Respondent's team were present; the rest were en route. As a result, Respondent was alone guarding what he correctly believed to be an apartment where a significant amount of illegal drugs were stashed.

Respondent was particularly vigilant of third parties who might try to take or destroy the drugs stashed in Apartment [REDACTED].

Respondent convinced this tribunal that it drew his suspicion when Person A walked toward him and that he believed that Person A was coming to the apartment he was securing. Respondent did not stop Person A at that moment. Instead, he appropriately chose to make an inquiry and confirmed that Person A was the building superintendent. Respondent continued to observe Person A and noted that he knocked on the door of the adjacent apartment. As Respondent testified, he "only had seconds to process" and "did not understand what [Person A] was doing 2 feet from him." Despite this added apprehension, Respondent continued his observation and inquiry and correctly asked the person who answered the door to Apartment [REDACTED] whether he had called the super. It is only when Carrion failed to confirm that he had called the superintendent that Respondent stopped Person A. Respondent explained that he believed Person A had lied to him and that approaching Apartment [REDACTED] was a "ruse" concocted to cover his connection to the activity in Apartment [REDACTED]. In short, Respondent articulated a reasonable basis for this stop based on the information he had at the time.¹ In making this finding I note that even if this particular stop involved some minor error of judgment, the preponderance of the evidence failed to prove the willful intent or negligence necessary to establish misconduct in a disciplinary proceeding. *See Ryan v. New York State Liquor Auth.*, 273 A.D. 576, 79 N.Y.S.2d 827, 832 (3d Dep't 1948). Accordingly, Respondent is found not guilty of Specification 1.

¹ The trial testimony that Carrion's sister did call [REDACTED] to repair her shower is not dispositive of this point. First, Respondent did not have that information at the time he made the stop. Second, although I credit [REDACTED]'s testimony that he told Respondent Carrion's sister had called, under these circumstances the stop was still permitted to allow Respondent to await his back up and complete his investigation.

The preponderance of the credible evidence, however, does not support a finding that Respondent was authorized to stop Mane. Resolution of this matter rests on the circumstances leading up to the stop. Even if I credit Respondent's reasons for stopping Mane, his justification does not rise to the level of reasonable suspicion. As articulated by the courts, reasonable suspicion "may not rest on equivocal or innocuous behavior that is susceptible of an innocent as well as a culpable interpretation." *People v. Carrasquillo*, 54 NY2d 248 (1981)

From the outset it is important to note that we cannot automatically assign to Mane the level of suspicion that attached to Person A when the reason for his close proximity to Respondent was not verified. In fact, Respondent made no inquiries of Mane. That Mane spoke to Person A as they walked down the corridor does not rise to the level of reasonable suspicion. First, the building's long entrance corridor leads to both the staircase and Apartments [REDACTED] [REDACTED] [REDACTED] therefore, anyone entering the building would be walking in the direction of Respondent's position. Second, Respondent should have anticipated foot traffic at 1600 hours on a weekday – a time when residents would be returning home from school and work. Third, given the configuration of the hallway, the description of Mane walking with Person A to the right of the staircase before turning and climbing the stairs hardly seems suspect. Neither does the fact that a 73 year-old man was slow to advance up the staircase, or looked at this police interaction occurring a few yards away. In sum, Respondent's articulated factors were insufficient to provide Respondent with a legal basis to conduct more than a Level I or Level II request for information. Accordingly, I find Respondent is guilty of Specification 3.

The preponderance of the credible evidence also supports a finding that Respondent was not authorized to frisk Mane and Pers.. Patrol Guide Procedure 212-11 states that: When a uniformed member of the service reasonably suspects a person has "committed, is committing or is about to commit a felony or a Penal Law misdemeanor," that officer may frisk if they "reasonably suspect [they] or others are in danger of physical injury." Under these circumstances, suspicion to justify a frisk must be particularized. See Legal Bureau Bulletin, Vol. 1, No. 3, p. 3 (Mar. 31, 1971); *People v. Mack*, 26 N.Y.2d 311, 317 (1970); Patrol Guide § 212-11 (2).

With respect to the excessive force charges, the threshold question is whether there was cause for force to be used. If there was not, any force used was unjustified. If there was cause, then the inquiry focuses on whether the amount of force exercised by Respondent was reasonable. To make this determination it is necessary to examine the context in which the force was used and the amount of force exercised. *Gatto v. Brown*, 650 N.Y.S.2d 162 (1st Dep't 1996).

The record does not support a finding that frisking Person A was justified. Given the very nature of the operation, Respondent did have reason to be concerned for his safety. Respondent, however, did not articulate facts that would support a finding that he had formed an independent, reasonable belief that Person A himself was a danger. To the contrary, Respondent's testimony is that Person A was fully compliant and did everything he was asked to do, including keep his hands against the wall and in plain view. In light of his own testimony, Respondent is found guilty of Specification 2.

Respondent and Mane presented conflicting accounts of the facts leading up to his frisk and Respondent's decision to use force. Resolution of this matter essentially rests

on an evaluation of witness credibility. In making such assessment, the trier of fact should consider a wide range of factors, including but not limited to, witness demeanor, corroborating evidence, the consistency of a witness' account both at trial and over time, the degree to which the witness is interested in the outcome of a case, the potential prejudice or bias of the witness, and perhaps most basically the degree to which the witness' account is logical and comports with common sense and general human experience. I found Mane to have been more credible than Respondent in this case.

Mane, for the most part, told a consistent, plausible, straightforward narrative. Several factors in particular supported his credibility. For one thing, Mane gave a very specific accounting of the force that he claimed Respondent used that did not appear exaggerated or embellished. He did not claim a vicious or prolonged beating, nor did he claim permanent injuries. Rather, he asserted that he was punched twice in the back and that he was pushed against the wall causing his glasses to break and cut his face. The nature of the force he described suggested an effort to be accurate, not a fabrication. Second, his tone at trial was calm and measured, not zealous or angry. Third, I found no demonstrable bias against the police due to their profession. In fact, Mane emphasized that his daughter is a police officer and that he himself has never had a previous police encounter of this nature. Fourth, there was an absence of a compelling motive for Mane to lie. Although he did file a lawsuit based on this incident, he has already received a monetary settlement. Fifth, Person A's account, although hearsay, materially substantiated Mane's testimony that there was "confusion" on Mane's part and that Respondent's reaction was to punch him twice, push him against the wall and break his glasses. In

sum, this tribunal found Mane to be a credible witness whose version of what occurred was deemed persuasive.

In contrast, I did not believe Respondent's account that Mane acted in a manner justifying a reasonable suspicion that he was "in danger of physical injury" [Patrol Guide 212-11 (2)] by repeatedly refusing to keep his hands on the wall. After reviewing the evidence and assessing the totality of circumstances presented at the hearing, I found Respondent's statement that he personally placed Mane's hands against the wall, and that Mane removed them numerous times to be a self-serving exaggeration. That on direct he estimated placing Mane's hands on the wall 4 to 5 times and during cross examination increased the estimate to 5 to 10 is persuasive evidence of embellishing his account. I also rejected Respondent's assertion that a "jab" was justified because this elderly man "los[t] his mind" and came at him with hands "toward [his] face." The following excerpt from Respondent's testimony was especially telling:

I never wanted them to come in the building in the first place. I mean, I had my target apartment and I had my target outside ... I wasn't looking for any extra people. They came into my area. (Tr. 107)

This reasoning is insufficient to justify Respondent's actions to two people entering their residence.

In sum, I do not believe that Respondent had a reasonable basis to believe Mane put his safety in jeopardy. Rather, I credited Mane and Person A's account that there was a language barrier, that Mane became confused, and that Respondent's reaction was to punch an elderly man twice, push him against the wall and break his glasses.

Accordingly, this tribunal finds that CCRB met its burden of proof that Respondent's

actions were gratuitous and improper and that he is guilty of the misconduct set forth in Specifications 4, 5 and 6.

PENALTY

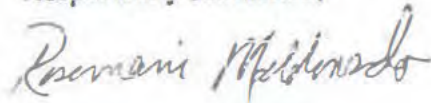
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974).

Respondent was appointed to the Department on July 16, 1999. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

CCRB argues that the forfeiture of 15 vacation days is the appropriate penalty in this case. Given that one specification was unfounded, I recommend a somewhat lesser penalty. Moreover, this tribunal acknowledges that the execution of the search warrant was premature and chaotic, but the residents of a building cannot bear the brunt of those factors. Moreover, Respondent's use of force against Mane was gratuitous. Accordingly, I recommend the forfeiture of 12 vacation days. This is within the range of prior penalties for similar misconduct. See *Disciplinary Case No. 6779/12* (October 13, 2014)(Thirteen year police officer with no prior disciplinary history negotiated a penalty of 15 vacation days for using unnecessary physical force against an individual, in that, he removed his gun belt and pushed said individual without police necessity) *Disciplinary Case No. 2013 10851*, (February 27, 2015)(Eight-year police officer with no prior disciplinary record forfeits

ten vacation days for striking complainant with an asp in the head without police necessity)

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

NOV 20 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

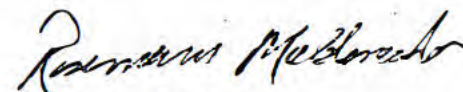
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE JEFFREY CARROLL
TAX REGISTRY NO. 923888
DISCIPLINARY CASE NO. 2014-11925

On his last three annual evaluations, Respondent received an overall rating of 5.0 "Extremely Competent" twice and 4.5 "Extremely Competent/Highly Competent" once. He has been awarded 13 medals for Excellent Police Duty and one for Meritorious Police Duty. [REDACTED]
[REDACTED]

Respondent has been the subject of one prior adjudication. A 2006 trial on allegations of an unlawful search and excessive force resulted in a finding of not guilty.

For your consideration.



Rosemarie Maldonado
Deputy Commissioner Trials